

Reverse the Rescission

CEMEX changed the plant operation. The truck traffic proves it.

A simplified case for Boulder County citizens: reinstate the April 10, 2024 termination determination.

This case is not complicated.

For decades, the plant depended on local and adjoining raw-material supply. CEMEX replaced that system with distant trucked feedstock. That is an altered nonconforming use, and the traffic numbers are the proof.

1

Historic use

Local quarry and conveyor logistics anchored the cement plant operation.

2

What changed

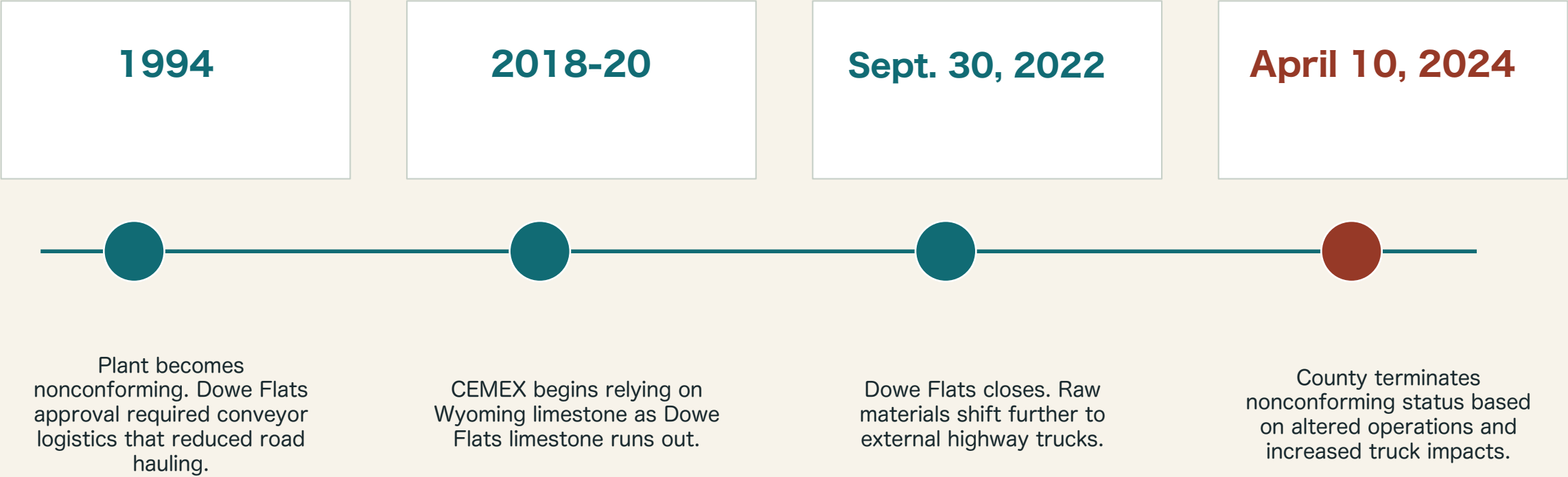
After local sources ran down and Dowe Flats closed, raw materials shifted to highway trucks.

3

Why it matters

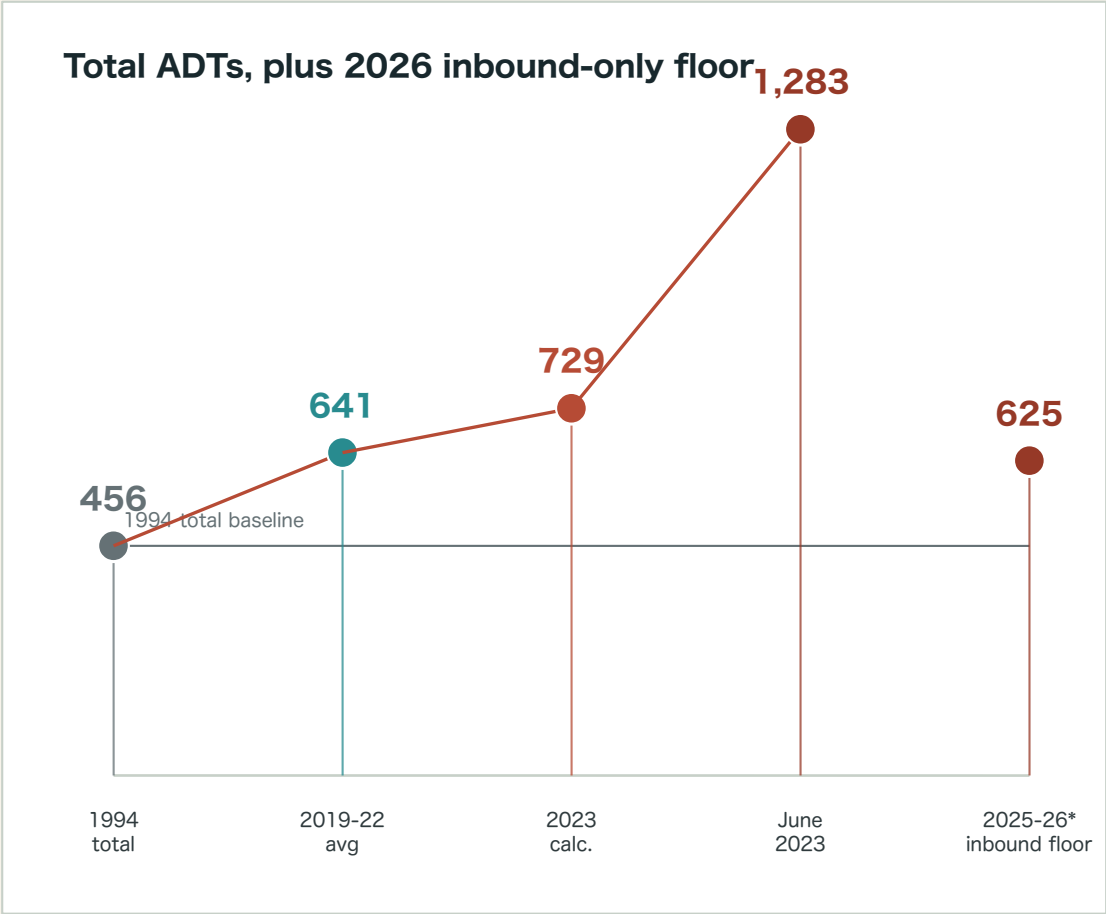
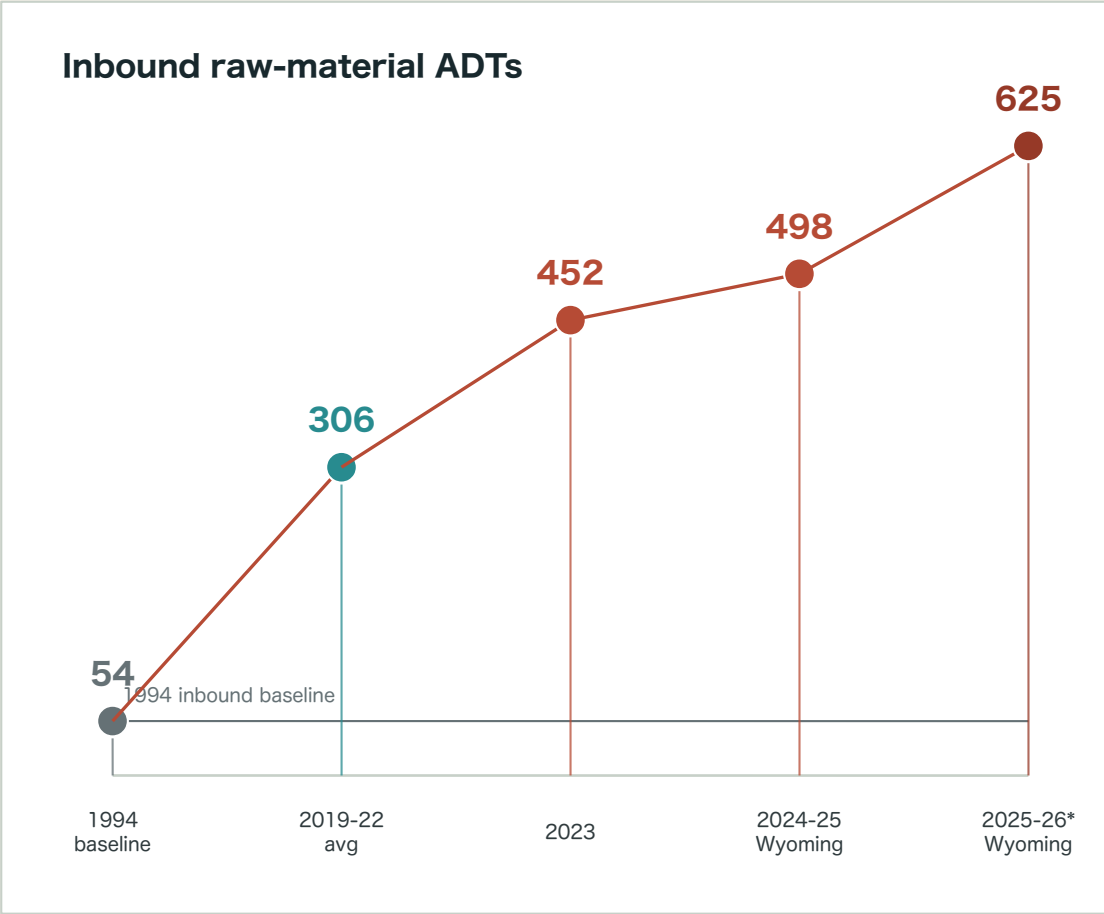
Article 4-1003.C.1.d reaches alterations that create or threaten hazard, nuisance, neighborhood impacts, or increased need for services.

The old operation is gone.



CEMEX wants the County to compare traffic as if the operation stayed the same. The record shows the opposite.

The key years show the arc from 1994 to 2026.



The right-hand 2026 point is not total traffic. It is Wyoming limestone alone. Even that inbound-only floor exceeds the entire 1994 plant baseline.

One comparison wins the case.

54

1994 inbound raw-material ADTs

Wyoming limestone alone is about 11.6x the 1994 inbound baseline.

625

2025-26 Wyoming limestone ADTs*

That number is before shale, finished product, employees, vendors, or any other plant traffic.

456

entire 1994 plant total ADTs

The inbound-only 2026 floor is already higher than the 1994 total plant baseline.

Dale Case's no-increase premise cannot survive the 2026 PT0658 math.

The defenses are distractions from the changed operation.

Background traffic

SH-66 background volumes do not answer the question: what traffic did CEMEX itself generate?

Landis report

It mixes units, omits 1994, relies on weak regression, and ignores the actual inbound trend.

Stantec backpedal

CEMEX submitted the study to CDOT. A later memo cannot erase the observed June 2023 spike.

Estoppel / takings

The 2002 letter preserved only lawful nonconforming status. CEMEX never had a right to expand it.

A rescission should not rest on excuses that do not confront the central fact: CEMEX replaced local supply with heavy truck deliveries.

The legal rule fits the facts.

Article 4-1003.C.1.d

A nonconforming use loses protection for any alteration that creates or threatens hazard or nuisance, adversely affects neighborhood character, or intensifies the use or need for services.

Article 4-1003.H.1 puts the burden on CEMEX to show it has not unlawfully altered or expanded the use.

Trial-lawyer translation

- The altered use is the new feedstock logistics.
- The truck traffic is the evidence and consequence.
- The 1994 baseline does not protect a materially different operation.
- The County may reverse the rescission on corrected findings.

Silvestro's key point: CEMEX is wrong to limit the Code to onsite structural changes.

The County should reverse the rescission.

The corrected record shows a changed operation, dramatic raw-material truck traffic, and a flawed no-increase rationale. The April 10, 2024 termination should be reinstated or reissued with corrected findings.

The proof package

Traffic workbook

CEMEX Historical Data.xlsx: Data Dec18, ADT summary, total ADTs, post-Dowe ADTs, Landis Flaws, Inbound Material Modes.

Wyoming tonnage

PT0658 annual reports and PT0658_Wyoming_Traffic_Calculations.csv.

County record

April 10, 2024 termination notice; Stantec and Landis materials; Boulder County 2002 letter.

Legal letters

James R. Silvestro letters for GNL/SOSVV dated July 9, 2024 and December 20, 2024.

Public-facing note: this is an advocacy synthesis. Attach the primary PDFs and workbook tables before any official filing.